Maddela vs. Oxiana Philippines, Inc.

G.R. No. 198243 (Notice) • February 27, 2019 •

FIRST DIVISION

[G.R. No. 198243. February 27, 2019.]

MARIANO MADDELA, RENATO ENGGO, TONY CABARROGUIS, ET AL., petitioners, vs. OXIANA PHILIPPINES, INC., respondent.

NOTICE

Sirs/Mesdames :

Please take notice that the Court, First Division, issued a Resolution dated February 27, 2019 which reads as follows:

"G.R. No. 198243 (Mariano Maddela, Renato Enggo, Tony Cabarroguis, et al. v. Oxiana Philippines, Inc.). — We rule on the petition for review on Certiorari 1 challenging the Decision 2 dated May 26, 2011 and the Resolution 3 dated August 11, 2011 of the Court of Appeals (CA) in CA-G.R. SP No. 107344. The CA affirmed the Decision 4 dated November 13, 2007 of the National Commission on Indigenous Peoples (NCIP), Region 2, Regional Hearing Office (RHO) dismissing the petition for revocation of the Certification Precondition issued by the NCIP in favor of Oxiana Philippines, Inc. (Oxiana).

Petitioners are residents of Barangays Pao and Kakidugen of the Municipality of Kasibu, Nueva Vizcaya. Said barangays are covered by a Certificate of Ancestral Land Domains Title (CADT) duly issued by the NCIP in favor of the Bugkalot tribe, of which petitioners are members, pursuant to the Republic Act No. 8371 otherwise known as The Indigenous Peoples Rights Act of 1997 (IPRA). These barangays are also the sites where Oxiana intended to implement its initial work for mining explorations under its Exploration Permit issued by the Mines and Geosciences Bureau of the Department of Environment and Natural Resources (MGB-DENR) Region II. 5

Oxiana commenced exploration activities in these two barangays in 2004. However, these exploration activities became subject of an Injunction case filed with the NCIP-RHO of Region 2, which compelled Oxiana to undergo a Free and Prior Informed Consent (FPIC) process as provided by Section 59 of IPRA and NCIP Administrative Order No. 3, Series of 2002 (AO No. 3). 6

The FPIC process that was conducted and the Certification Precondition that was issued as a result of the FPIC are the points at issue in this case.

According to petitioners, before and during the conduct of the consultations for FPIC validation, there were strong oppositions coming from concerned tribal leaders and elders of the Bugkalots residing at Barangays Pao and Kakidugen. Allegedly, the consultations were marred with malice, threat and intimidations, manipulations and machinations by the agents of Oxiana. The agents allegedly promised and actually gave the Bugkalots money and other consideration during the FPIC process in exchange for the issuance of Oxiana's Certification Precondition from the NCIP. 7

Petitioners also contended that the barangay officials, some elders and leaders of the Bugkalots of Barangays Pao and Kakidugen "walked-out" of the FPIC consultation because they could not

tolerate the (1) machinations and the incessant giving of money to some Bugkalot elders by Oxiana's agents and representatives, and also the (2) alleged presence of "flying voters" from Nagtipunan, Quirino. 8 Petitioners, therefore, insisted that, because of Oxiana's alleged violation of Section 31 (a), paragraph 3 of AO No. 3, 9 and because their consent was never given, there was no real FPIC that was granted to Oxiana's exploration activities. 10

Despite these alleged irregularities, representatives of Oxiana and the Bugkalot tribe signed a Memorandum of Agreement 11 (MOA) on April 25, 2007. On April 26, 2007, the representatives of the Bugkalot tribe issued a Certificate of Free and Prior Written Consent 12 in favor of Oxiana. On June 18, 2007, the NCIP en banc issued Resolution No. 044 dated June 18, 2007 approving the issuance of a Certification Precondition for Oxiana's exploration project in Barangays Pao and Kakidugen. 13 On June 19, 2007, a Compliance Certificate (certificate of compliance to the FPIC and certification that the community has given its consent) was issued in favor of Oxiana for its exploration project at Barangays Pao and Kakidugen. 14

Petitioners also argued that the rights of the non-members of the Indigenous Cultural Communities (ICCs)/Indigenous Peoples (IPs) who are also residents of Barangays Pao and Kakidugen and are registered owners of lands pursuant to the Property Registration Act should likewise be recognized and respected by Oxiana. 15

Thus, through a petition 16 before the NCIP-Region 2, RHO, petitioners sought to declare the following null and void:

> (1) The FPIC that was granted by the Bugkalots of Barangays Pao and Kakidugen, Kasibu, Nueva Vizcaya, in favor of Oxiana for the conduct of its mining exploration activities;
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> (2) The NCIP en banc Resolution No. 044 dated June 18, 2007 approving the issuance of a Certification Precondition for the exploration project of Oxiana at Barangays Pao and Kakidugen;
>
> (3) The Compliance Certificate dated June 19, 2007 issued in favor of Oxiana for its exploration project at Barangays Pao and Kakidugen.

Petitioners also prayed that another FPIC consultation/negotiation with other ICCs/IPs or registered owners of land who are to be affected in the proposed activities of Oxiana at the said barangays be conducted. 17

The NCIP-Region 2, RHO denied the petition in its Decision 18 dated November 13, 2007. It held that the NCIP-FPIC team faithfully and substantially complied with the mandatory activities prescribed under Section 14 of AO No. 3. 19 The NCIP-Region 2, RHO also gave credence to the Affidavit of a certain Robert Cabarroguis that, since he was neither an Oxiana employee nor an elder/leader of the Bugkalot community, he had no authority and influence to transact with, and bribe, petitioners Barangay Captain Mariano Maddela of Barangay Pao, and Renato Enggo. 20

The NCIP-Region 2, RHO added that petitioners should not be permitted to question the result of the voting since petitioner Maddela and his companions "walked-out" from the meeting for the validation of elders or leaders to determine who shall vote for Oxiana's proposal. While petitioners were also present during the voting, they refused to cast their votes so, their rights to vote were deemed waived. 21

Petitioners filed a Motion for reconsideration but it was denied in the Resolution of the NCIP-Region 2, RHO. Petitioners subsequently appealed the Resolution of the RHO to the NCIP but the latter, in its Resolution dated August 27, 2008, 22 dismissed the appeal. Petitioners filed a Motion for reconsideration 23 but it was likewise denied in NCIP-Region 2, RHO's Resolution dated January 9, 2009. 24

Thus, petitioners filed a petition 25 for review under Rule 43 of the Rules of Court before the CA.

The CA in its Decision denied the petition and affirmed the Decision of then NCIP-Region 2, RHO and the NCIP.

One of the issues raised before the CA was, which between AO No. 3 and Administrative Order No. 1, Series of 2006 26 (AO No. 1) should apply as regards the scope of the IPs or the ICCs who should give their free and prior informed consent when necessary. 27

Petitioners argue that AO No. 1 applies such that it was an error to include other members of Bugkalot tribe (from different barangays, municipalities or provinces) as part of the FPIC process. Petitioners also contended that the exclusion of migrant IPs in the FPIC process contravenes AO No. 1. According to them, AO No. 1 allows, subject to the approval of the owners of the subject Ancestral Domain, the inclusion of migrant IPs in the FPIC process.

Oxiana, however, contends that AO No. 3 is the applicable rule because, at the time of the effectivity of AO No. 1, a Field-Based Investigation (FBI) had already been conducted, removing this case from the purview of AO No. 1. 28

The CA agreed with respondent Oxiana and held that AO No. 3 applies. 29 It found that, as early as 2002, as reported by the FPIC team, the NCIP-Region 2 had already constituted a team to conduct a FBI on Oxiana's Exploration Permit Application in several barangays of Kasibu, Nueva Vizcaya. Thus, the CA held that "[w]ith the commencement of the said FBI before the promulgation of [AO No. 1], it follows therefore that the present dispute is beyond its coverage." 30

Applying therefore AO No. 3, the CA found that respondent Oxiana complied with the procedure under Section 14 31 of the administrative order. It did not find any irregularity or deceitful method enforced by Oxiana in the FPIC process. The CA noted that petitioners' accusations (on the alleged machinations employed by Oxiana) were not substantially proven and conversely upheld the validity of the FPIC issued by the Bugkalots in favor of Oxiana. 32

Corollarily, the CA also ruled that petitioners' argument on the inclusion of non-residents of Barangays Pao and Kakidugen and the exclusion of migrants in the FPIC process is without merit. It adopted the NCIP's explanation that the right to give or withhold consent on a project to be undertaken affecting a particular ancestral domain springs from the right of ownership over the land, and therefore, residence of the owner is irrelevant. Otherwise, by sheer strength of numbers, the vote of migrant IPs merely subleasing a portion of the ancestral domain can overturn the will of the ICC/IP who own the ancestral domain, whether or not the ICC/IP actually reside in the ancestral domain. 33

The CA also did not agree with petitioners' argument that the FPIC process is invalid because the consent of 60 members obtained is less than half of the total number (124) of official qualified voters of the Bugkalot tribe. The CA ruled that Section 14 (e) of AO No. 3 never mentioned that a majority vote of the total numbers of qualified voters is needed to affirm the proposal. Thus, a

plurality vote would suffice. The CA found that, in this case, the 60 affirmative votes as against the six dissenters manifestly showed the positive assent to pass Oxiana's proposition. 34

Lastly, the CA did not give merit to petitioners' contention that respondent Oxiana acted in bad faith when it failed to disclose that it changed its corporate name to Royalco Philippines, Inc. since October 4, 2006. The CA explained that there is nothing illegal in the change of name, much more, its non-disclosure to petitioners. It also did not create a new Corporation. 35

Petitioners filed a Motion for reconsideration 36 but this was denied. 37

Hence, the petition.

Before this Court, petitioners present the following issues, to wit:

First, the subject FPIC and the corresponding documents issued by the NCIP to Oxiana should be invalidated outright as they were procured by Fraud, machinations, and bribery, among others. 38

Second, the consent of all the IPs living and residing within Barangays Pao and Kakidugen was not obtained because the FPIC process blatantly disregarded the established rules of procedure of AO No. 1 (particularly on the inclusion of non-resident Bugkalots and the exclusion of the migrant IPs of the subject barangays) and incorrectly used AO No. 3 as basis for the procedure. 39

Third, out of the 124 registered household leaders in the two barangays, only 67 received ballots for the scheduled voting while only 66 members actually voted (with 60 voting in favor of, and six voting against, Oxiana's proposal). FPIC, as defined in the IPRA, its Implementing Rules and Regulations (IRR) and AO No. 1 requires the consensus of all members of the ICCs/IPs without any qualification whatsoever. 40

Fourth, petitioners argue that AO No. 1 should be applied in this case since the application for the issuance of Certification Precondition and the conduct of the FPIC process was made within the effectivity of the said guidelines. 41

Fifth, Oxiana acted in bad faith in not disclosing that it has already changed its corporate name to Royalco Philippines, Inc. since October 4, 2006. 42

We grant the petition.

At the outset, We agree with the CA that petitioners' accusations of bribery and promise of money by Oxiana to petitioners and the Bugkalot elders/leaders were not substantially proven. Petitioners failed to present competent Evidence, other than their own self-serving affidavits, to prove that Oxiana offered to pay them money in exchange for their consent for the validation of the FPIC. 43

We likewise rule that the change of name effected by Oxiana is not material to the issue of the validity of the FPIC process. We agree with the CA that there is nothing in the IPRA, its IRR and AO No. 3 which prohibits Oxiana from changing its name or requiring it to inform the ICCs/IPs of the affected community of the change. 44

We further agree with the CA that AO No. 3 applies in this case. Section 56 45 of AO No. 1 provides that the filing of an application and the conduct of an FBI prior to the effectivity of AO No. 1 removes the process from the coverage of the administrative order. In this case, since an FBI was conducted in 2002, the CA correctly ruled that AO No. 3 should apply. 46

Under AO No. 3, FPIC refers to the consensus of all members of the ICCs/IPs, determined in accordance with their respective customary laws and practices, free from any external manipulation, interference and coercion, and obtained after fully disclosing the intent and scope of the program/project/activity, in a language and process understandable to the community. The FPIC is given by the concerned ICCs/IPs upon the signing of the Memorandum of Agreement containing the conditions/requirements, benefits, as well as penalties of agreeing parties as basis for the consent. 47

Under the same rules, a Certification Precondition refers to the certification issued by the NCIP that the site covered and affected by any application for concession, license or lease, or production-sharing agreement does not overlap with any ancestral domain area of any indigenous cultural community or indigenous peoples or, if the site is found to be within an ancestral domain area, that the required FPIC was properly obtained from the ICC/IP community concerned in accordance with the provisions of these guidelines. 48 Section 59 49 of the IPRA mandates that all departments and other government agencies are strictly enjoined from issuing, renewing, or granting the application without the certification precondition, which is issued only after a field-based investigation is conducted by the Ancestral Domains office of the affected area.

The foregoing requirements tell us that a properly conducted FPIC is an indispensable and integral part of the certification precondition. Indeed, AO No. 3 delineates the mandatory activities in the conduct of the FPIC process. We note the CA's finding that "[we] carefully perused the Record of the present case and discovered that, indeed, [Oxiana] had complied with the foregoing procedure before the FPIC was granted by the Bugkalots in its favor." 50

Corollarily, We agree with the CA when it upheld the scope of the FCIP process conducted, with respect to the ICCs and IPs who should be involved in the consultation. The applicable rule is Section 16 of AO No. 3, which provides for the scope of ICCs/IPs who are required to give their free and prior informed consent, to wit:

> Sec. 16. Who Shall Give their Free and Prior Informed Consent. — The scope of the ICCs/IPs whose free and prior informed consent is required shall depend upon the impact area of the proposed policy, program, projects, plans, activity or undertaking, such that:
>
> a) When the policy, program, project, plan, activity or undertaking affects only a particular community within the ancestral domain, only such community shall give their FPIC. But the Council of Elders/Leaders representing the whole ancestral domain shall be the one to determine whether or not a given policy, program, project, plan, activity or undertaking affects the whole of the ancestral domain or only a portion of it. The determination of the scope by the council, may be challenged by way of a petition filed before the Regional Hearing Officer. The Petition must be duly signed by a majority of the members of the whole ancestral domain area with the allegation that the Council have not reconsidered their extermination of the scope despite their opposition thereto;
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> xxx xxx xxx 51 (Emphasis supplied.)

Following Section 16 (a), only members of the Bugkalot tribe in the affected communities, i.e., Barangays Pao and Kakidugen, should participate in the FPIC process, which we find to have been correctly done in this case. Only the owner ICCs/IPs within the affected community may vote for the grant of FPIC. Mere residency of the migrants does not give them the right to vote. Under the IPRA, the concept of ancestral domain is based on ownership; it is, thus, only proper that only

owner ICCs/IPs of the affected community can determine whether a project should be undertaken within their area. 52

We, however, disagree with the CA's ruling that the affirmative votes were sufficient for purposes of consenting to Oxiana's proposition. The CA explained:

> x x x Section 14, par. e of [AO No. 3] never mentioned that a majority vote of the total numbers of the qualified voters is needed to affirm the proposal. To the Court's mind, therefore, a plurality vote would suffice. In fine, the sixty (60) affirmative votes as against the six (6) dissenters manifestly showed the positive assent to pass the herein private respondent's proposition. 53

The CA anchored its ruling on Section 14 (e) of AO No. 3, which only says, to wit:

> Sec. 14. Mandatory Activities in the Conduct of FPIC Process. — The ADO through the Regional Office shall ensure that the FPIC process include among others, the following:
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> xxx xxx xxx
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> e) Community Assembly. Within fifteen (15) days after the lapse of the period provided for the community consensus building conducted by the ICC/IP Elders/Leaders, NCIP shall cause the conduct of Assembly of all the members of the community as represented by the household heads. It is on this occasion that the decision of the ICC/IP with respect to the proposal will be made known. NCIP will determine by raising of hands the number of those who would vote for or against the proposal. The leaders or elders will be required to explain the vote had, and if the decision is for the proposal, the terms and conditions of the giving of their consent thereto. The decision as explained shall be properly documented, and the terms and conditions approving the proposal shall be translated in the form of a MOA to be signed by both parties with NCIP, represented by the Chairman, signing as the third party. The person to sign, representing the community, shall be chosen by the council of elders/leaders among themselves, duly authorized by them. A translation of MOA to the dialect of the ICC/IP shall then be prepared.

Contrary to the ruling of the CA, We do not find that the plurality vote of 60 affirmative votes is sufficient to satisfy the FPIC.

Pursuant to IPRA, the NCIP promulgated Administrative Order No. 1, Series of 1998 or the Rules and Regulations Implementing The Indigenous Peoples Rights Act of 1997 (IPRA-IRR). 54

Section 9, Part II, Rule VIII of the IPRA-IRR provides that the written consent for the issuance of the Certification Precondition by the ICCs/IPs who will be affected by the operation of concessions, licenses or leases or production-sharing agreements shall be signed by at least a majority of the representatives of all the households comprising the concerned ICCs/IPs, thus:

> Sec. 9. Certification Precondition Prior to Issuance of any Permits or Licenses. —
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> a. Need for Certification. No department of government or other agencies shall issue, renew or grant any concession, license, lease, permit, or enter into any production sharing agreement without a prior certification from the NCIP that the area affected does not overlap any ancestral domain.
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> b. Procedure for Issuance of Certification by NCIP.
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> 1) The certification, above mentioned, shall be issued by the Ancestral Domain Office, only after a field based investigation that such areas are not within any certified or claimed ancestral domains.

> 2) The certification shall be issued only upon the free, prior, informed and written consent of the ICCs/IPs who will be affected by the operation of such concessions, licenses or leases or production-sharing agreements. A written consent for the issuance of such certification shall be signed by at least a majority of the representatives of all the households comprising the concerned ICCs/IPs.
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> xxx xxx xxx (Emphasis supplied.)

This provision of the IRR has not been repealed expressly or impliedly by any other subsequent issuance of the NCIP and must therefore be applied. Thus, an absolute majority, i.e., majority of all representatives of all households comprising the concerned ICCs/IPs and not merely a majority of those present during the voting proceedings, is necessary for the grant of FPIC.

The nature of the FPIC cannot be over-emphasized. Section 3 (g) of the IPRA requires that there be a free and prior informed consent by the indigenous peoples concerned to be exercised through consultations before any decision relating to their ancestral domain is made. In fact, the requirement for an FPIC is almost pervasive in the text of the IPRA. 55 We take note of the CA's observation that "[t]his rule does not only guarantees the right to information x x x of the people in these areas, but also the right of the indigenous peoples 'to free and prior informed consent' as an element of due process." 56

In relation to this, the State, through the IPRA, explicitly recognizes the inherent right of ICCs and IPs to self-governance and self-determination, and consequently guarantees their right to freely pursue their economic, social and cultural development. 57 Precisely, the requirement for an effective FPIC (before an activity that would impact the interests of the ICCs and IPs) manifests the objective of the law.

In view of the foregoing, and absent any showing that the FPIC process conducted in this case obtained the written consent of at least a majority of the representatives of all the households comprising the concerned ICCs/IPs as required by the IRR, we cannot uphold the Certificate Precondition granted as a consequence of the FCIP process conducted.

WHEREFORE, the petition dated September 28, 2011 is **GRANTED**. The Decision dated May 26, 2011 and the Resolution dated August 11, 2011 of the Court of Appeals in CA-G.R. SP No. 107344 are REVERSED and SET ASIDE. The Memorandum of Agreement dated April 25, 2007, the Certificate of Free and Prior Informed Consent dated April 26, 2007, the National Commission on Indigenous Peoples en banc Resolution No. 044 dated June 18, 2007, and other issuances pursuant to these documents are declared **NULL and VOID**. We REMAND this case to the National Commission on Indigenous Peoples for the conduct of new Free and Prior Informed Consent proceedings requiring the affirmative vote of at least a majority of the representatives of all the households comprising the concerned Indigenous Cultural Communities/Indigenous Peoples.

SO ORDERED." Bersamin, C.J., and Carandang, J., both on official business.

Very truly yours,
(SGD.) LIBRADA C. BUENA
Division Clerk of Court

Footnotes

1. Rollo, pp. 9-49.

2. Id. at 71-89; penned by Associate Justice Franchito N. Diamante, with the concurrence of Associate Justices Josefina Guevara-Salonga and Mariflor P. Punzalan Castillo.

3. Id. at 91-93.

4. Id. at 298-308.

5. Id. at 13.

6. Id.; Revised Guidelines for Free and Prior Informed Consent and Issuance of Certificate Precondition.

7. Rollo, p. 284.

8. Id. at 288.

9. Sec. 31. Prohibited Acts. — After the filing of the application and during the period that the application is pending, any of the following acts or omissions are hereby declared either acts prejudicial to the interest of the [Indigenous Peoples] community in the attainment of their consent or is an act in circumvention of the intent of the law in requiring the free, prior and informed consent of [Indigenous Cultural Communities/Indigenous Peoples] community and are therefore prohibited:

a) By the applicant

1. Employment or use of force, threat, coercion, intimidation at any degree or in any manner, including those done by individuals or group of persons acting for the applicant;

2. Bringing of firearm/s in the community during visits by the applicant or group of persons acting for the applicant. When needed, armed security shall be obtained from local police authorities of the [Armed Forces of the Philippines] as requested by the [National Commission on Indigenous Peoples];

3. Bribery or promise of money, privilege, benefit or reward other than what is presented by the applicant/proponent during the preliminary consultative meeting with the Council of the Elders;

4. Clandestine or surreptitious negotiations with [Indigenous Peoples] individuals or members of the community concerned done without the knowledge of the council of leaders or elders;

5. Delivery to the community or any of its members donations of any kind.

xxx xxx xxx

10. Rollo, pp. 288, 294.

11. Id. at 217-225.

12. Id. at 227.

13. Id. at 19.

14. Id. at 294-295.

15. Id. at 291.

16. Id. at 283-297.

17. Id. at 295.

18. Supra note 4.

19. Rollo, p. 306.

20. Id.

21. Rollo, p. 307.

22. Id. at 365-374.

23. Id. at 375-382.

24. Id. at 383-384.

25. Id. at 385-427.

26. The Free and Prior Informed Consent Guidelines of 2006.

27. Rollo, p. 78.

28. Id. at 43-44; Part X of the National Commission of Indigenous Peoples Administrative Order No. 1, Series of 2006 states, to wit:

> Sec. 56. Applicability to Pending Applications. — This Guidelines shall apply to all applications for the issuance of Certification Precondition and Issuance of Certificate of Free and Prior Informed Consent by the [Indigenous Peoples/Indigenous Cultural Communities] received after the effectivity of these Guidelines: Provided, however, that in cases where the application was already received but no [Field-Based Investigation] was commenced due to failure of an applicant to pay the required fee, such application shall still be covered by this Guidelines.

29. Rollo, p. 78.

30. Id. at 79.

31. Mandatory Activities in the Conduct of the FPIC Process.

32. Rollo, pp. 85-86.

33. Id. at 86-87.

34. Id.

35. Rollo, p. 87.

36. Id. at 94-105.

37. Supra note 3.

38. Rollo, p. 28.

39. Id. at 33-34.

40. Id. at 40-41.

41. Id. at 43-44.

42. Id. at 21-22.

43. Id. at 85.

44. Id. at 86-87.

45. Sec. 56. Applicability to Pending Applications. — This Guidelines shall apply to all applications for issuance of Certification Precondition and issuance of Certificate of Free and Prior Informed Consent by the [Indigenous Peoples/Indigenous Cultural Communities] received after the effectivity of this Guidelines: Provided, however, that in cases where the application was already received but no [Field-Based Investigation] was commenced due to failure of applicant to pay the required fee, such application shall still be covered by this Guidelines.

46. Rollo, p. 78.

47. Administrative Order No. 3, Sec. 5 (d), Series of 2002.

48. Administrative Order No. 3, Section 5 (c), Series of 2002. Underscoring supplied.

49. Sec. 59. Certification Precondition. — All departments and other governmental agencies shall henceforth be strictly enjoined from issuing, renewing, or granting any concession, license or lease, or entering into any production-sharing agreement, without prior certification from the [National Commission on Indigenous Peoples (NCIP)] that the area affected does not overlap with any ancestral domain. Such certification shall only be issued after a field-based investigation is conducted by the Ancestral Domains Office of the area concerned: Provided, That no certification shall be issued by the NCIP without the free and prior informed and written consent of [Indigenous Cultural Communities (ICCs)/Indigenous Peoples (IPs)] concerned: Provided, further, That no department, government agency or government-owned or -controlled Corporation may issue new concession, license, lease, or production sharing agreement while there is a pending application for a [Certificate of Ancestral Domain Title]: Provided, finally, That the ICCs/IPs shall have the right to stop or suspend, in accordance with this Act, any project that has not satisfied the requirement of this consultation process.

50. Rollo, p. 82.

51. Administrative Order No. 3, Sec. 16 (a), Series of 2002.

52. The definition and concept of an ancestral domain under Sections 3 (a) and 4, respectively of IPRA together with the indigenous concept of ownership under Section 5 of the same law lead to such conclusion. They provide:

> Sec. 3. Definition of Terms. — For purposes of this Act, the following terms shall mean:
>
> a) Ancestral Domains — Subject to Section 56 hereof, refer to all areas generally belonging to ICCs/IPs comprising lands, inland waters, coastal areas, and natural resources therein, held under a claim of ownership, occupied or possessed by ICCs/IPs, by themselves or through their ancestors, communally or individually since time immemorial, continuously to the present except when interrupted by war, force majeure or displacement by force, deceit, stealth or as a consequence of government projects or any other voluntary dealings entered into by government and private individuals/corporations, and which are necessary to ensure their economic, social and cultural welfare. It shall include ancestral lands, forests, pasture, residential, agricultural, and other lands individually owned whether alienable and disposable or otherwise, hunting grounds, burial grounds, worship areas, bodies of water, mineral and other natural resources, and lands which may no longer be exclusively occupied by ICCs/IPs but from which they traditionally had access to for their subsistence and traditional activities, particularly the home ranges of ICCs/IPs who are still nomadic and/or shifting cultivators;
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> xxx xxx xxx

> Sec. 4. Concept of Ancestral Lands/Domains. — Ancestral lands/domains shall include such concepts of territories which cover not only the physical environment but the total environment including the spiritual and cultural bonds to the areas which the ICCs/IPs possess, occupy and use and to which they have claims of ownership.
>
> Sec. 5. Indigenous Concept of Ownership. — Indigenous concept of ownership sustains the view that ancestral and all resources found therein shall serve as the material bases of their cultural integrity. The indigenous concept of ownership generally holds that ancestral domains are the ICC's/IP's private but community property which belongs to all generations and therefore cannot be sold, disposed or destroyed. It likewise covers sustainable traditional resource rights. (Underscoring supplied.)

53. Rollo, p. 87.

54. This was followed by several administrative orders including Administrative Order No. 3, Series of 1998 which provided for the supplemental guidelines for the issuance of The Free and Prior Informed Consent (FPIC); Administrative Order No. 3, Series of 2002 or Revised Guidelines for FPIC and Issuance of Certification Precondition; and Administrative Order No. 1, Series of 2006 or The FPIC Guidelines of 2006, among others.

55. Underscoring supplied; See Section 7. Rights to Ancestral Domain; Section 32. Community Intellectual Rights; Section 33. Rights to Religious, Cultural Sites and Ceremonies; Section 35. Access to Biological and Genetic Resources; Section 46 (a). Officers within the National Commission on Indigenous Peoples; Section 58. Environmental Consideration; and Section 59. Certificate Precondition.

56. Rollo, pp. 77-78.

57. Republic Act No. 8371, Sec. 13.